

(3) the railway servant or the police officer or the officer authorised, as the case may call to his aid any other person to effect the arrest under sub-section (1).

(4) Any person so arrested under this section shall be produced before the nearest Magistrate within a period of twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the Magistrate.

Comment.

Section 179 provides for arrest of a person without warrant for the offences mentioned therein.

180. Arrest of persons likely to abscond, etc. – (1) Any person who commits any offence under this Act, other than an offence mentioned in Sec. 179, or is liable to pay any excess charge or other sum demanded under Sec. 138, fails or refuses to give his name and address or there is reason to believe that the name and address given by him are fictitious or that he will (officer authorised) any railway servant authorized in this behalf or any police officer not below the rank of a head constable may arrest him without warrant or written authority.

(2) The officer authorised may call to his aid any other person to effect the arrest under sub-section (1).

(3) Any person arrested under this section shall be produced before the nearest Magistrate within a period of 24 twenty-four hours of such arrest excluding the time necessary for the journey from the place of arrest to the court of the Magistrate unless he is released earlier or giving bail or if his true name and address are ascertained before on executing a bond without sureties for his appearance before the Magistrate having jurisdiction to try him for the offence.

(4) The provisions of chapter. XXIII of the Code of Criminal Procedure, 1973 (2 of 1974), shall so far as may be, apply to the giving of bail and the execution of bonds under this section.

Comments

Any police officer not below the rank of head constable, or any railway servant authorised in this behalf is empowered to arrest any person accused of any offence under this act, except in case of an offence under section 179 or a liability under section 138, without warrant.

“180(A) –Inquiry by officer authorised to ascertain commission of offence:

For ascertaining facts and circumstances of a case, the officer authorized may make an inquiry into the commission of an offence mentioned in sub-section (2) of Sec.179 and may file a complaint in the competent court if the offence is found to have been committed.

180(B) – Powers of officer authorised to inquire:

While making an inquiry, the Officer authorized shall have power to -

- i. Summon and enforce the attendance of any person and record his statement.
- ii. Require the discovery and production of any document.
- iii. Requisition any public record or copy thereof from any office , authorized or person.
- iv. Enter and search any premises or person and seize any property or document which may be relevant to the subject matter of the inquiry.

180(C) – Disposal of persons arrested:

Every person arrested for an offence punishable under Sub-Section (2) of section 179 shall, if the arrest was made by a person other than the officer authorized, be forwarded , without delay, to such officer.

180(D) – Inquiry how to be made against arrested person: (i) - when any person is arrested by the Officer authorized for an offence punishable under this act, such Officer shall proceed to inquire into the charge against such person.

ii) For this purpose, the Officer authorized may exercise the same power and shall be subject to the same provisions as the officer in charge of a Police station may exercise and is subject to the provisions of the code of Criminal Procedure, 1973, when investigating a cognizable case :

Provided that;

- a) If the Officer authorized is of the opinion that there is sufficient evidence or reasonable ground of suspicion against the accused person, he shall either admit him to bail to appear before a magistrate having jurisdiction in the case, or forward him in custody to such magistrate
- b) If it appears to the Officer authorized that there is not sufficient evidence or reasonable ground of suspicion against the accused person he shall released the accused person on his executing a bond , with or without

sureties as the Officer authorized may direct, to appear, if and when so required, before the Magistrate having jurisdiction/

180(E) Search, seizure and arrest how to be made: All searches, seizures and arrest made under this act shall be carried out in accordance with the provisions of the Code of Criminal Procedure, 1973, relating respectively to searches and arrests made under that code.

180(F) Cognizance by court on a complaint made by officer authorised: No Court shall take cognizance of an offence mentioned in sub-section (2) of Section 179 except on a complaint made by the officer authorized.

180(G) Punishment for certain offences in relation to inquiry: - Whoever intentionally insults or causes any interruption in the inquiry proceedings or deliberately makes a false statement before the enquiring Officer shall be punished with simple imprisonment for a term which may extend to Six months, or with fine which may extend to one thousand rupees, or with both.

181. Magistrates having jurisdiction under the Act.- Notwithstanding anything contained in the Code of Criminal procedure, 1973 (2 of 1974), no, Court inferior to that of a Metropolitan Magistrate or a Judicial Magistrate of the first class shall try an offence under this Act.

182. Place of trial. – (1) Any person committing an offence under this Act or any rule made there under shall be triable for such offence in any place in which he may be or which the State Government may notify in the behalf, as well as in any other place in which he is liable to be tried under any law for the time being in force.

(2) Every notification under sub-section (1) shall be published in the official Gazette, and a copy thereof shall be exhibited for the information of the public in some conspicuous place at such railway station as the State Government direct.

Comment

Section 181 and 182 respectively provide for the court for trying the offences and the place of trial.

CHAPTER XVI

Miscellaneous

183. Power to provide other transport services. – (1) A railway administration may, for the purpose of facilitating the carriage of passengers or goods to provide integrated service for such carriage, provide any other mode of transport.